

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 30, 2026, AT 8:30 A.M.

Accordingly, plaintiffs' motion is denied.

Plaintiff's Motion for Preferential Trial Setting CCP § 36(a)

Plaintiffs' motion for trial preference is granted. (Code Civ. Proc., § 36, subd. (a).) The court finds plaintiffs are over 70 years old, have a substantial interest in the action as a whole, and their injuries from the recent motor vehicle accident and Deborah Nelson's heart issues are such that a preference is necessary to prevent prejudicing his interest in the litigation. (*Ibid.*; *Id.* at § 36.5.)

The matter is set for a jury trial commencing Monday, November 23, 2026, at 8:30 a.m. in a department to be assigned. The parties are to report to Jury Services/Master Calendar. The parties shall contact Jury Services/Master Calendar the Friday prior to trial, between 1:00 p.m. and 3:00 p.m. for further assignment information.

A civil trial conference is set for Friday, November 13, 2026, at 8:30 a.m. in Department 3. The parties are referred to Placer Court Local Rules 20.4 and 20.1.11 for more information as to what is required to be presented at the conference.

A mandatory settlement conference is set for Wednesday, November 4, 2026, at 8:30 a.m. in Department 6. The parties are to report to Jury Services/Master Calendar.

If oral argument is requested with respect to the trial and related dates chosen by the court, the parties are ordered to meet and confer in good faith prior to the hearing, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, to select mutually agreed upon trial dates.

4. S-CV-0054586 JAHANSHAHI, SHAHROUZ v. BULGARI CORP. OF AM.

Defendant Bulgari Corporation of America's Motion to Set Aside Sanctions

Preliminary Matters

The court notes defendant's reply papers were untimely filed. The court admonishes defendant to adhere to statutory filing deadlines for future filings.

Ruling on Motion

Defendant moves to set aside the court's order imposing \$1,350 in sanctions against it pursuant to Code of Civil Procedure section 473, subdivision (b).

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Code of Civil Procedure section 473, subdivision (b) provides, in relevant part, The court may, upon any terms as may be just, relieve a party or the party's legal representative from a[n] . . . order . . . through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be . . . made within a reasonable time, in no case exceeding six months, after the . . . order . . . was taken.

(Code Civ. Proc., § 473, subd. (b).)

Defendant specifically contends setting aside the sanctions order is proper because its lead counsel was out on medical leave indefinitely from March 2026 onwards and thus any failure to oppose plaintiff's motion to withdraw from arbitration was due to mistake, inadvertence, surprise, or excusable neglect.

However, the court did not impose sanctions because defendant failed to oppose the motion. Rather, Code of Civil Procedure section 1281.97, subdivision (a) requires the court to impose a monetary sanction against any party that materially breaches the arbitration agreement. A material breach includes the failure to pay fees and costs of arbitration. (Code Civ. Proc., § 1281.97.) An exception to the imposition of monetary sanctions is if defendant's failure to pay the arbitration fees was the result of defendant's good faith mistake, inadvertence, or other excusable neglect. (*Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310, 323.)

It does not appear that defendant's counsel's absence beginning in March 2026 was a good faith mistake, inadvertence, or excusable neglect that resulted in the nonpayment of arbitration fees in October and November 2025. Nor does counsel provide any facts suggesting the nonpayment was due to a good faith mistake, inadvertence, or excusable neglect.

Accordingly, defendant's motion is denied.

5. S-CV-0055740 LEGRAND, BRIAN v. LEGRAND, KAREN

The demurrer is continued to **August 20, 2026, at 8:30 a.m. in Department 3.**

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